

and description of such messenger, and the date when such oath was so administered.

That no writ of execution, nor any writ of attachment, shall hereafter be issued for the purpose of requiring or compelling obedience to any Order or Decree of this Court; but that the party, required by any such Order to do any act, shall upon being duly served with such Order be held bound to do such act in obedience to the Order.

(88.)

January, 1852.
Service of Order to have the effect of Writ of Execution.

That, if any party who is by an Order or Decree ordered to pay money or do any other act in a limited time shall after due service of such Order refuse or neglect to obey the same according to the exigency thereof, the party duly prosecuting such Order shall at the expiration of the time limited for the performance thereof be entitled to an Order for a Sergeant-at-Arms and such other process as he was formerly entitled to upon a Return *non est inventus* by the Commissioners named in a Commission of Rebellion issued for non-performance of a Decree or Order.

(89.)

January, 1852.
Compulsory process for refusing obedience to Orders,

That every Order or Decree requiring any party to do an act thereby ordered shall state the time after service of the Decree or Order within which the act is to be done, and that upon the copy of the Order which shall be served upon the party required to obey the same there shall be endorsed a memorandum in the words or to the effect following, namely, "If you, the within A. B., neglect to perform this Order by the time therein limited, you will be liable to be arrested by the Sergeant-at-Arms attending the High Court of Chancery, and also be liable to have your estate registered for the purpose of compelling you to obey the same Order."

(90.)

January, 1842.
Notice of liability for non-performance of Order.

That, upon due service of a Decree or Order for delivery of possession and upon proof made of demand and refuse to obey such Order, the party prosecuting the same shall be entitled to an Order for a writ of assistance.

(91.)

January, 1842.
Writ of assistance.

That in all suits concerning real estate which is vested in Trustees by devise, and such Trustees are competent to sell and give discharges for the proceeds of the sale and for the rents and profits of the estate, such Trustees shall represent the persons beneficially interested in the estate or the proceeds of the rents and profits in the same manner and to the same extent as the executors or administrators in suits concerning personal estate represent the persons beneficially interested in such personal estate, and in such cases it shall not be necessary to make the persons beneficially interested in such Real Estate or rents and profits

(107.)

January, 1842.
Trustees of real estate to be made parties without joining persons beneficially interested.